

25SMCV04346 25SMCV04346

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TENTATIVE RULING

Defendant Xams, LLC dba Miguelito's Tacos' Demurrer to Plaintiff's Complaint is SUSTAINED with thirty (30) days leave to amend as to the fifth, eighth, and ninth causes of action.

Defendant Xams, LLC dba Miguelito's Tacos' Motion to Strike Plaintiff's Claim for Punitive Damages is GRANTED with thirty (30) days leave to amend as to the claims for and allegations relating to punitive damages.

Plaintiff Moises Diaz Arellano may amend his complaint only as authorized by the Court's order and may not amend the complaint to add a new party or cause of action without having obtained permission to do so. (Harris v. Wachovia Mortgage, FSB (2010) 185 Cal.App.4th 1018, 1023.)

Demurrer

Fifth Cause of Action: Sex/Gender and Sexual Orientation Discrimination in Violation of California Government Code § 12940 et seq.

A plaintiff alleging discrimination must allege "that (1) he was a member of a protected class, (2) he was qualified for the position he sought or was performing competently in the position he held, (3) he suffered an adverse employment action, such as termination, demotion, or denial of an available job, and (4) some other circumstance suggests discriminatory motive." (Guz v. Bechtel National Inc. (2000) 24 Cal.4th 317, 355.)

Plaintiff alleges that he is male and homosexual (Compl. ¶ 86), and "as a direct and proximate result of Plaintiff's sex/gender and sexual orientation, Defendant refused to engage Plaintiff in an interactive process, refused to communicate with Plaintiff, denied Plaintiff opportunity for advancement, promotion and the ability to earn a living, and terminated Plaintiff" (Compl. ¶ 90). Confusingly, Plaintiff contradicts this by stating elsewhere that he resigned his employment, albeit as alleged constructive termination (Compl. ¶ 20), and he states only that his complaints were not adequately addressed, not that his employment was changed in some way. Put simply, it is not clear that Plaintiff was subject to discrimination by his employer based on these facts. Accordingly, Defendant's demurrer to the fifth cause of action is SUSTAINED with thirty (30) days leave to amend.

Eighth Cause of Action: Retaliation in Violation of California Government Code §12940(h)

"To establish a prima facie case of retaliation under the [Fair Employment and Housing Act] FEHA, a plaintiff must show (1) he or she engaged in a 'protected activity,' (2) the employer subjected the employee to an adverse employment action, and (3) a causal link existed between the protected activity and the employer's action." (Meeks v. Autozone, Inc. (2018) 24 Cal.App.5th 855, 878-879, brackets omitted.) "An 'adverse employment action,' which is a critical component of a retaliation claim, requires a substantial adverse change in the terms and conditions of the plaintiff's employment." (Holmes v. Petrovich Development Co., LLC (2011) 191 Cal.App.4th 1047, 1063, quotation marks omitted.)

Plaintiff alleges that he requested disability accommodations and medical treatment and lodged complaints about harassing and discriminatory acts, and Defendant took retaliatory action against him "by failing to determine the essential functions of Plaintiff's job, mistreating Plaintiff, denying Plaintiff advancement and promotion, and ultimately terminating Plaintiff." (Compl. ¶ 123.) Again, the nature of the retaliatory conduct is unclear, and it is not clear that any conduct was linked to Plaintiff engaging in protected activity, i.e., the complaint fails to make clear that Plaintiff was subject to an adverse employment action after he requested accommodations and complaint about harassment and discrimination. Thus, Defendant's demurrer to the eighth cause of action is SUSTAINED with thirty (30) days leave to amend.

Ninth Cause of Action: Constructive Wrongful Termination

"In order to establish a constructive discharge, an employee must plead and prove . . . that the employer either intentionally created or knowingly permitted working conditions that were so intolerable or aggravated at the time of the employee's resignation that a reasonable employer would realize that a reasonable person in the employee's position would be compelled to resign." (Turner v. Anheuser-Busch, Inc. (1994) 7 Cal.4th 1238, 1251.) As a general matter, there must be a "continuous pattern" of "unusually aggravated" "adverse working conditions," as "isolated acts of misconduct are insufficient to support a constructive discharge claim." (Id. at p. 1247, brackets and quotation marks omitted.)

Plaintiff alleges that he resigned his employment (Compl. ¶ 20), and he alleges that Defendant constructively and wrongfully terminated him because "(i) he suffered from a disability, (ii) he is a homosexual male, and (iii) he lodged complaints about his working environment" (Compl. ¶ 133). Such facts do not sufficiently allege the sort of working conditions that would support a claim for constructive discharge, as Plaintiff alleges only that his complaint of pain was ignored (Compl. ¶ 15) and a coworker sexually assaulted him without corrective action (Compl. ¶ 17), but it is not clear that this constituted a continuous pattern of adverse working conditions, i.e., these read more of isolated acts of misconduct, which are insufficient to support a constructive discharge claim. For that reason, Defendant's demurrer to the ninth cause of action is SUSTAINED with thirty (30) days leave to amend.

Motion to Strike

Plaintiff alleges claims for punitive damages through the complaint, but the allegations, as stated, are conclusory, as it is not clear who was made aware of what issues during Plaintiff's employment. It appears Plaintiff seeks to hold Defendant liable for the acts of a specific coworker, but corporate employers like Defendant may be liable for punitive damages only where the acts supporting the award were performed by or with knowledge of or with ratification by corporate officials. (Civ. Code, § 3294, subd. (b).) Plaintiff has not alleged sufficient facts that would allow the trier of fact to conclude that corporate officials were aware of the likelihood of injury to Plaintiff due to failure to remedy the issues or that they ratified the wrongful conduct which ultimately caused harm to Plaintiff. Upon amending the complaint, Plaintiffs must allege specific facts in this regard to support an award for punitive damages, and conclusory statements will not suffice. Accordingly, Defendant's motion to strike is GRANTED with thirty (30) days leave to amend as to Plaintiffs' claim for punitive damages.